

Court No. - 3

Case :- WRIT - C No. - 22638 of 2016

Petitioner :- Mahendra Dubey

Respondent :- U.P.P.C.L. And 3 Ors.

Counsel for Petitioner :- Santosh Singh Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Heard Shri S.S. Yadav for the petitioner, learned Standing counsel for the State respondents and Sri Mahboob Ahmad appearing for respondent nos. 1 and 2.

It is contended on behalf of the petitioner that since he did not receive the copy of the provisional assessment notice, as such, he could not submit his reply and in absence whereof the respondent treated it to be final and issued recovery certificate.

Learned counsel appearing for the petitioner has invited our attention to the contents of the notice dated 28.02.2015 as well as the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in **Ashok Kumar & Ors. Vs. State of U.P. & Ors., 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.1,42,569/-. The notice also does not specify the date for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned notice dated 28.02.2015 and the recovery citation dated 07.09.2015 are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner within 15 days from the date of production of a certified copy of this order. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar** (supra).

Order Date :- 17.5.2016

VKS